



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 28, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202003805 regarding Police Officer Miguel Vanbrakle, Tax No. [REDACTED] (DADS No. 2022-24739) and Police Officer Brandon Patane, Tax No. [REDACTED] (DADS No. 2022-24737)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action will be taken against Police Officer Vanbrakle and Police Officer Patane in connection with their utilization of their OC Spray during a dangerous confrontation with violent protestors.

A review of significant evidence which portrayed the extremely dangerous situation in which Officers Vanbrakle and Patane found themselves on May 30, 2020, provided sufficient context to conclude that the use OC Spray to deter further actions of violence against these officers and other officers alongside them was warranted.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Vanbrakle and Police Officer Patane will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-02 (Use of Force)

and Patrol Guide Procedure 221-07 (Use of Oleoresin Capsicum Pepper Spray Devices).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish at the end.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office